

Subject: Public accommodation for Arlington's 2022 Virtual Town Meeting
From: Stephen Harrington <sth.alist@gmail.com>
Date: 4/26/22, 11:35
To: kelli.gunagan@mass.gov
BCC: Chris Loreti <cloreti@verizon.net>, "Dean E. Carman" <coolio6725@aol.com>

Dear Counselor Kelli Gunagan,

Thank you for our brief chat today.

I am hoping you can direct me to the proper resource in the Attorney Generals' Office.

Background

Arlington's Town Meeting began on Monday, April 25 (yesterday). I found that providing informational materials or advocacy pamphlets to the Town Meeting body was not possible for the general public although the Town operated an email redistribution portal for this very purpose - the ***Town Meeting Members Email List***.

Arlington's Town Meeting Moderator, Greg Christiana, claims the authority to approve submissions based on content and hold authors' "accountable". Christiana rejected my request to post the third email below to the ***Town Meeting Members Email List*** without explanation or notice.

Below are three email communications between myself and Arlington Town Meeting Moderator Greg Christiana. Arlington Town Counsel Douglas Heim is copied. As well, I copied many, but not all Town Meeting Members, on all of my communications.

I have not received any reply or communications from Heim.

Please, let me know if the AGO's office can be of assistance as soon as possible; time is of the essence since Arlington's Town Meeting has begun. Regards. The only relief I ask now is that the Town of Arlington accommodates public input to the body of Town Meeting at the same level as the ***Town Meeting Members Email List*** without content moderation.

Thank you,

Stephen Harrington
74 Columbia Road
Arlington, MA 02474
617-852-4939

Sunday, April 24 Harrington Email to Christiana and Heim

Dear Town Meeting Moderator Greg Christiana,

I read with interest your rules for the 2022 Arlington Town Meetings (annual and special) as described here:

<https://www.arlingtonma.gov/town-governance/town-meeting/members-email-list>

In particular:

2) General materials relevant to a Warrant Article, such as we find on our chairs, should be submitted by 10:00 a.m. on the day of the meeting.
All materials must be clearly marked as to who is submitting them: i.e.: Name and Precinct Number, or which Town Department. Unidentified materials will not be posted.

How does an ordinary citizen, a non-resident, a group or committee submit written material, "such as we find on our chairs", to Town Meeting?

Can you clarify why unsigned material is restricted?

As you must know, in-person Town Meeting provides public access including leaving written material on member seats before Town Meeting begins. In-person Town Meeting also provides a venue for expression through sign holding, rallies, etc. to petition Members as they approach Town hall.

In the past, when the informal Town Meeting email list was merely ancillary, restrictions were not an undue burden on the general public. The decision to eliminate in-person Town Meeting makes electronic communication the only venue.

Care should be taken when restricting the general public's right to petitioning Town Meeting as a body.

How does the rule against unsigned expression preserve these activities for the general public?

I have CC'd Arlington Town Counsel on this correspondence so that he may assist you in understanding your rights and responsibilities in your new role as an elected official to the general public.

Please, provide a written response to the three specific questions above as soon as possible. Time is of the essence since Town Meeting begins soon.

Regards,

Stephen Harrington
Columbia Road
Arlington, MA

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Monday April 25 3:21AM Christiana email to Harrington , Heim

Hi Stephen,

Requests to distribute relevant materials to Town Meeting Members through the Town-managed Town Meeting Members Email List can be sent to me at gchristiana@town.arlington.ma.us. If I deem the material relevant and appropriate, I'll forward the request to staff who manage the email distribution list.

Requiring clearly marked authorship helps ensure accountability. There are plenty of forums for sharing material anonymously, but the Town Meeting Members Email List is not one of them.

I believe that the manner in which we're conducting Town Meeting remotely this year is in accordance with Massachusetts General Laws.

Regards,
Greg

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Monday April 25 8:58AM Harrington email to Christiana, Heim

Dear Town Meeting Moderator Greg Christiana,

Please, distribute this email and your response from early this morning (below) to the Town-managed Town Meeting Members Email List before any vote is taken in regards to holding a remote Town Meeting for 2022.

tl;dr Town Meeting Members - I urge you to Vote NO on continuing Remote Town Meeting due to lack of public accommodation.

In the recent past, advocacy, informational materials and pamphlets were routinely distributed on Town Meeting Members chairs at Town Hall without any content review or signature required (for material unrelated to motions).

This established and traditional public forum was an ongoing, standard practice. I distributed materials in this manner on several occasions with the generous assistance (printing) of the Town Manager's office.

Further, there were many occasions where unsigned pamphlets, a few reprehensible, were left on Town Meeting Member seats without any restrictions from prior Town Meeting Moderators.

The public's ability to express their opinion by leaving materials "on the seats" established Town Hall as a public forum for Town Meeting - as it has been and should remain to be.

About 10 years ago, a Town Meeting Member (Rich Carriero) started a private email distribution list, which was later adopted by the former Town Moderator, to facilitate distribution of informational materials to Town Meeting Members. This "email list" was in addition to the established practice of "on the seats" communication.

The proposed vote, that you advocated for thru the Town-managed Town Meeting Members Email List, is to continue remote Town Meetings and eliminate the public's ability to express themselves to Town Meeting Members without your personal approval of the content.

Further, you have decided unilaterally, or perhaps with the advice of Town Counsel (copied here), to restrict anonymous speech.

Even a cursory google search of "anonymous pamphleteering" results in germane SCOTUS rulings on this very question. In [McIntyre V Ohio, 1995](#), the majority opinion clearly and succinctly states in support of anonymous political speech:

"... anonymous pamphleteering . . . [has] an honorable tradition of advocacy and of dissent. Anonymity is a shield from the tyranny of the majority. . . . It thus exemplifies the purpose behind the Bill of Rights, and of the First Amendment in particular: to protect unpopular individuals from retaliation and their ideas from suppression at the hand of an intolerant society."

Words of wisdom with relevance today.

Obviously, even to a non-lawyer, your stated goal to restrict electronic communications to public officials based on your opinion of the content, is unseemly, at best.

Further, you have a distorted understanding of the role you, or any public official, has in public discourse.

You write: "Requiring clearly marked authorship helps ensure **accountability**".

I am not accountable to you. The actions and speech of the general public is not accountable to you or any public official.

You, as an elected Town Meeting Moderator, are accountable to the public, including me.

Town Meeting is not some Facebook group or Discord channel inhabited by sleep deprived gamers. I'll chalk up your proclivity for controlling the content of speech by members of the public in an established public forum as inexperience.

However, without essentially the same accommodations of public communications to Town Meeting Members; free of your content review and providing for anonymous advocacy, I have deep concerns about the validity of Arlington's 2022 annual Town Meeting.

Regards,

Stephen Harrington
Columbia Road